

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/29/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: MSC21-02036
CASE NAME: PEOPLE OF CA VS. CORTEVA INC
SETTLEMENT CONFERENCE WITH JUDGE WEIL AS REQUESTED BY PARTIES
FILED BY:
TENTATIVE RULING:

Parties to appear.

2. 9:00 AM CASE NUMBER: C22-00932
CASE NAME: CARMELLA ESPANA VS. ED EGZON
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: THE PERMANENTE MEDICAL GROUP, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is a demurrer by defendant The Permanente Medical Group, Inc. to plaintiff's third amended complaint. For the reasons set forth, the demurrers to the first through fourth causes of action are **sustained, with leave to amend.**

Background

Plaintiff Carmella Ashley Espana filed her complaint initiating this action on May 5, 2022. The complaint named one defendant, Dr. Jonathan Rosenson, and no Doe defendants. The attachment to the complaint described an "Incident" she alleges occurred on May 5, 2021, when, in advance of a scheduled spinal injection procedure Plaintiff was to undergo at Kaiser's facility in Richmond, a male nurse at Kaiser allegedly forcefully lifted her leg from the floor onto an exam table. (Compl. Incident att.) She alleged that the nurse's conduct caused her to suffer a painful leg injury, and that she was taken to Kaiser's emergency room where Dr. Rosenson, an emergency room physician, refused to give her a CT scan or perform an MRI on her leg to determine the extent of the muscle tear. (Compl. Incident att.) She alleged she was improperly discharged with crutches and without treatment and asserted two causes of action for general negligence and medical negligence. (Compl. ¶ 10.b. and f. and Incident att.)

Plaintiff filed a first amended complaint on November 21, 2022, which identified as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Hospital Richmond," and Does 1 to 3. On October 20, 2023, Plaintiff filed a second amended complaint which named as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Northern California (Hospital Richmond)," and Does 1 to 3.

Plaintiff engaged counsel in May 2025. Through counsel, she entered into a stipulation approved by the Court allowing her to file her operative third amended complaint ("3AC"). (7/8/2025 Stip. and Order.) The 3AC was filed on August 21, 2025 and names as defendants Ed Egzon, "The Permanente Medical Group, Inc." ("TPMG"), and Does 2-30 as defendants. Plaintiff alleges that she substituted TPMG as "Doe 1." (3AC ¶ 2.) The 3AC alleges causes of action for medical battery (1st C/A), medical malpractice (2nd C/A), negligent infliction of emotional distress ("NIED") by breaching the duty of care owed to Plaintiff (3AC ¶¶ 17, 18, 3rd C/A), and lack of informed consent (4th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (See also Code Civ.